

DISSENTING OPINION BY COUNT ROSTWOROWSKI.

[*Translation.*]

I very much regret that I am unable to concur with the judgment given, in the suit concerning certain German interests in Polish Upper Silesia, upon the "Plea to the Jurisdiction" filed by the Polish Government on June 25th, 1925.

Without reverting to the various facts set out in the Judgment, it is necessary to take as a starting point the "plea to the jurisdiction" referred to, in which it was submitted that:

(a) in regard to "affaire I" ¹, the Court should declare that it had no jurisdiction, or in the alternative that the Application could not be entertained until the German-Polish Arbitral Tribunal had given judgment;

(b) in regard to "affaires II" ¹, the Court should declare that it had no jurisdiction, or in the alternative that the Application could not be entertained.

The jurisdiction of the Permanent Court of International Justice, which was accepted by the German Government in its first Application and subsequently affirmed in the German Government's Observations of July 10th, 1925, and in the course of the oral proceedings, was thus disputed by the Polish Government, both in its plea to the jurisdiction and in the statements of Counsel. Poland occupied the position of Applicant. The case was placed upon the list in so far as the objections in question were concerned. The Parties were duly informed of the decision to extend *sine die* the times fixed for the deposit of the documents of procedure in regard to the merits, should such procedure take place.

Proceedings having thus been commenced solely as concerns the preliminary objections raised by Poland in regard to the Court's jurisdiction, it will be well to examine the legal aspect of the problem.

¹ Of the German Application. [*Author's note.*]

I.

According to Article 36, last paragraph, of the Statute :

“In the event of a dispute as to whether the Court has jurisdiction, the matter shall be settled by the decision of the Court.”

Such a decision which, if taken, can clearly be based only on the objective law applicable in the particular case, is of a purely declaratory nature ; and it can never create a right, i.e. bestow on the Court itself a jurisdiction which is not supported by applicable rules of law either general or particular.

A general rule laid down by Article 36, paragraph 1, of the Statute provides for a *compromis* between the Parties, which in the present case does not exist. It also refers to special Treaty provisions.

The German-Polish Convention regarding Upper Silesia, concluded on May 15th, 1922, at Geneva, constitutes a special source of jurisdiction of this kind, for it gives the Permanent Court of International Justice jurisdiction in two different sets of circumstances :

(1) that dealt with in Article 2, paragraphs 1 and 2, in conjunction with Article 586, where the Court's jurisdiction is strictly limited and subordinated in each particular case to a previous decision by the German-Polish Mixed Commission ; this clause does not come into account ;

(2) that provided for in Article 23, which is the only clause that can be invoked in the present case. And it is precisely the applicability of this clause which was affirmed by one Party and denied by the other.

The opposing Parties in the present case left it to the Court to decide whether Article 23 was applicable, being agreed to obtain a decision as to the Court's jurisdiction by means of an interpretation of this article, that is to say by means of an interpretation of their own common intention as expressed in this article.

It would appear that this interpretation should be a strict and even a restrictive one, in order to avoid the possibility of either of the contracting States being placed in the painful position of

having the Court's jurisdiction imposed upon it in a case which had not been willingly provided for in advance.

The opinion given by Mr. Moore (Judgment No. 2, page 60) appears to be most judicious:

"The international judicial Tribunals so far created have been tribunals of limited powers. Therefore, no presumption in favour of their jurisdiction may be indulged. Their jurisdiction must always affirmatively appear on the face of the record."

A general idea of the great care taken by the Court before deciding on a similar point in the case of the Mavrommatis Palestine Concessions is given by the three following passages of Judgment No. 2:

1. "It appears in fact from the documents before the Court and from the speeches... that the preliminary question to be decided is not merely whether the nature and subject of the dispute laid before the Court are such that the Court derives from them jurisdiction to entertain it, but also whether the conditions upon which the exercise of this jurisdiction is dependent are all fulfilled in the present case." (Page 10.)

2. "Before considering whether the case of the Mavrommatis concessions relates to the *interpretation* or *application* of the Mandate and whether consequently its nature and subject are such as to bring it within the jurisdiction of the Court as defined in the article quoted above, it is essential to ascertain whether the case fulfils all the other conditions laid down in this clause...." (Page 11.)

3. "... the Court, bearing in mind the fact that its jurisdiction is limited, that it is invariably based on the consent of the respondent and only exists in so far as this consent has been given, cannot content itself with the provisional conclusion that the dispute falls or not within the terms of the Mandate. The Court, before giving judgment on the merits of the case, will satisfy itself that the suit before it, in the form in which it has been submitted and on the basis of the facts hitherto established, falls to be decided by application of the clauses of the Mandate. For the Mandatory has only accepted the Court's jurisdiction for such disputes." (Page 16.)

It seems necessary to exercise similar care in the two suits (I and II of the German Application) without losing sight of the fact that the Geneva Convention, in general, and its Section III in particular which includes the Article 23 in question, regulates the exercise of public authority by Poland in Upper Silesia which became Polish after the plebiscite. Certain rights of Poland, of the Polish authorities and of the Polish Government in various branches of public administration, in accordance with the various carefully defined legal domains, are dealt with in great detail. By freely consenting to submit to the Court's jurisdiction certain clearly defined disputes, Poland alone of the two Parties concerned was the one making concessions—the only Party in practice compelled to appear before the Court upon the application of the other Party; for the inverse situation could not arise. When Article 6 of the Geneva Convention begins: "Poland may expropriate in Upper Silesia undertakings. . . .", it is the exercise of a right—of expropriation—accruing to Poland only which is therein regulated.

In an endeavour to devote the same care to the settlement of the two groups of cases now before the Court, we will abstain from following the learned distinction, adopted in Judgment No. 2, between the nature and object on the one hand, and other conditions on the other hand, and we will rest content with considering one by one the various conditions—all the conditions—contained in Article 23 all of which are equally and to the same degree important for the solution of the problem under consideration.

Article 23, the only clause dealing with this matter, is part of Section III—entitled "Expropriation"—of the Geneva Convention. This article runs as follows:

[*Translation.*]

Article 23.

"1. Should differences of opinion respecting the construction and application of Articles 6 to 22 arise between the German and Polish Governments, they shall be submitted to the Permanent Court of International Justice.

"2. The jurisdiction of the Germano-Polish Mixed Arbitral Tribunal derived from the stipulations of the Treaty of Peace of Versailles shall not thereby be prejudiced."

The first paragraph, which is positive in form, confers jurisdiction on the Permanent Court of International Justice ; this clause we will take first. The second paragraph, which is negative in form, constitutes a reservation in regard to the first ; it will be analyzed afterwards.

A. — Jurisdiction is conferred on the Court subject to the fulfilment of all the conditions of fact, which may be grouped under the three following headings :

1. — In the first place, the facts must include an actual interpretation and application of specified articles.

The two contracting States are not in the same situation, Poland alone being in a position both to interpret and apply the articles, whilst Germany, or its Government, can only interpret them. Interpretation, unaccompanied by application, even if undertaken by both countries, is not sufficient, for it is devoid of all practical interest. It is interpretation and application undertaken by Poland, the responsible power, combined with the interpretation of the German Government, which alone can give rise to differences of opinion and render applicable the provisions of Article 23. Application must take a positive form, that is to say must consist of finding that the provisions of some particular article have been fulfilled and of the application of the contemplated sanctions or legal consequences. An article may have been well or badly interpreted and applied, but it must have been applied. The Court, therefore, is not given jurisdiction in the case of certain expressly specified acts ; it only obtains jurisdiction indirectly through the use made by one of the two Governments of the articles specially enumerated.

2. — In the next place, the only articles the interpretation and application of which can give rise to a difference of opinion suitable for submission to the Court are those exhaustively enumerated, namely, Articles 6 to 22 of the same Convention. Of the three sections included in the first part of the Convention entitled *General Provisions*, only the third, Section III, regarding *Expropriation* and including the articles referred to, is thus in effect placed in a special position. Heading I concerning *Laws in force* and Heading II concerning the *Protection of vested rights*, like any other

provisions of municipal or international law, are, on the contrary, as regards their correct or incorrect interpretation and application, entirely outside the Court's jurisdiction in so far as that jurisdiction is governed by Article 23. Are they or are they not also under the protection of some jurisdiction whether national or international? Is it regarded as adequate or inadequate? These are questions of policy, of high international policy, and, in my view, the Court of International Justice cannot, on the basis of Article 23, be called upon either to answer them or to find a remedy.

3. — Lastly, resulting from this interpretation and application of the articles mentioned, there must be a difference of opinion arising between the German and Polish Governments. Such a difference must result from—that is to say originate in—the interpretation and application, but it must also arise, that is to say, take the form of an official controversy between the two Governments. Article 23 does not specify the length of time which this controversy must last; nor does it include a clause similar to that which exists in Article 26 of the Mandate for Palestine (“dispute . . . if it cannot be settled by negotiation”). It is sufficient but also essential that this disagreement, this contradiction, this opposition of legal arguments derived from practical experience, should in the first place take shape in a controversy which, far from being a mechanical juxtaposition of two individual opinions, constitutes the mutual confronting of these opinions in the form of diplomatic steps taken by the two Governments. If Article 23 requires that there must be a definite dispute between the two Governments, this condition cannot be fulfilled by unilateral action on the part of the applicant Party, and it does not rest solely with the Party concerned to remove this defect of form. It is equally necessary that the other Party should at least have an opportunity to decide upon its attitude with regard to its opponent's contentions and to communicate its views to the latter. Article 23, which makes a definite dispute one of the conditions for an action before the Permanent Court of International Justice, cannot be interpreted in a sense which would in fact lead to the elimination of that condition; and this would inevitably occur if the submission of the application were regarded as sufficient evidence of the existence of a difference of opinion.

An action at law which is dependent on the fulfilment of certain conditions cannot be confused with, nor substituted for, one of these conditions. The practical importance of this essential condition is especially worthy of notice, because, apart from the advantage of seeing States have recourse to legal proceedings as an *ultimum remedium*, the mere reading of diplomatic documents furnished by the Party or Parties concerned in support of the application enables the Court at once to verify whether the two other essential conditions are also fulfilled and, in particular, whether the subject matter of the difference is indeed the interpretation and actual application of Articles 6 to 22.

Such being the sense of Article 23, paragraph 1, it is easy to see that, if, on the one hand, that article indirectly provides individuals with a complete safeguard by guaranteeing to the State whose nationals they are the right of assuring that the articles concerning expropriation are correctly interpreted and applied, on the other hand, it places no obstacle in the way of the question of the Court's jurisdiction being examined and settled independently of any factors belonging to the merits of the case. The question of applicability or non-applicability in general of the régime of expropriation contained in Articles 6 to 22 cannot even arise; for the essential condition of actual application has indisputably placed the two Parties on the same common ground, that of Section III, entitled "Expropriation". The strict application of Article 23 in the sense referred to, and in conformity with its terms, thus enables us to avoid two equally undesirable possibilities: the possibility that the Court may affirm its jurisdiction in a purely provisional manner, on the basis of the doubt that may arise out of the very institution of proceedings, as regards the applicability or non-applicability; with the risk that later, in the course of proceedings on the merits, this doubt may be dispelled, in the sense that the articles are found inapplicable and the Court thus without jurisdiction; and, on the other hand, the possibility that the Court may affirm its jurisdiction as the result of certain considerations relating to the merits of the dispute; with the danger of prejudging by the decision as to jurisdiction some point or other which belongs to proceedings on the merits, and of compromising by this encroachment the essential position of equality which the two Parties are justly entitled to claim in entering on the field of these subsequent proceedings.

B. — Paragraph 2 of Article 23 contains a *negative* provision :

“The jurisdiction of the Germano-Polish Mixed Arbitral Tribunal derived from the stipulations of the Treaty of Peace with Versailles shall not thereby be prejudiced.”

Whatever may have been the object of this reservation, whether it were to ensure that the jurisdiction of the Court of International Justice should not in any way exclude the right of individuals to sue for their rights before the Mixed Arbitral Tribunal, or whether it were to prevent one or other of the Governments from substituting itself for its nationals and transferring the suit to another sphere by making it the subject of a dispute between two Governments, there is no doubt that we have here a reservation which is indissolubly connected with the first paragraph and refers to the Court's jurisdiction, which it defines, by elimination, as compared with the jurisdiction of the Mixed Arbitral Tribunal of Paris. For there can have been no idea of creating in the previous paragraph a concurrent or privileged, nor yet a hierarchically superior jurisdiction. In each of these three eventualities the competence of the Mixed Arbitral Tribunal would, either as regards its sphere of activity, or as regards its authority, have certainly been impaired. This Tribunal, in favour of which Article 304 (g) of the Treaty of Versailles provides that :

“The High Contracting Parties agree to regard the decisions of the Mixed Arbitral Tribunal as final and conclusive and to render them binding upon their nationals”,

thus remains, before and after the Geneva Convention, free in the exercise of its jurisdiction both to protect the private rights of individuals, and for this purpose to give a final interpretation of the law applicable in each particular case.

It follows that the jurisdiction of the International Court of Justice, which cannot overlap with that of the Mixed Arbitral Tribunal in Paris, must, within the sphere of its activities—a sphere very limited *ratione materie*—, differ from that of the Tribunal as regards its nature.

It none the less remains a true *jurisdiction*, and a jurisdiction for the hearing of *disputes* ; but, starting from an examination of particular instances of interpretation and application of Articles 6 to 22, which have necessarily been submitted to it, it reaches a decision which is in its turn an interpretation of the articles in question as regards the particular cases referred to. Without

remaining confined within an academic sphere of pure doctrine—for this it avoids by dealing always with concrete contested cases—it is none the less bound, in virtue of the mandate given by the Parties in Article 23, paragraphs 1 and 2, to confine itself to determining only differences of opinion between the two Governments concerned, without endeavouring by its decision to impose on one or other Government any obligation as regards individuals, for instance in the matter of reparation or indemnity.

It is solely in the interest of the Law—for Articles 6 to 22 of the Geneva Convention constitute in this case the Law common to the two Parties—that Article 23 of the same Convention, which has already been analyzed, gives a very particular and very special jurisdiction to the International Court of Justice.

II.

When compared with the conditions laid down as necessary in Article 23, the German Government's Application instituting proceedings, as regards conclusions 1(a), 1(b), 2(a) and 2(b), does not show that any of these conditions have been fulfilled. It is confronted with facts which are contrary to them. The documents and statements by Counsel have clearly shown that the steps taken by the Polish Government in regard to the *Oberschlesische Stickstoffwerke* Company, far from having constituted the application and interpretation of Articles 6 to 22 of the Geneva Convention, were inspired by other treaty provisions, such as Article 256 of the Treaty of Versailles and the Spa Protocol, applied by the Polish legislative enactments which were necessary for their execution. This fact is so well established that the "Observations of the German Government" themselves recognize it in the following passage (page 1):

"The German Government's complaint against the Polish Government is precisely that the latter Government has not applied the articles in question, although it should have done so."

But a complaint in regard to the non-existence of a fact cannot constitute its existence, or take the place of such fact.

Considering that neither the conditions of fact in regard to the previous official dispute nor those relating to the source and subject

matter of the dispute are realized ; and considering that the submissions of the German Application tend to raise quite another issue, that of the applicability of the régime of expropriation, which stands outside the limited sphere of Article 23 of the Geneva Convention, and extends over a very large number of legal domains entirely foreign to that which had been reserved by the Parties for the jurisdiction of the Permanent Court of International Justice, I can only conclude that the Court has no jurisdiction in the present case.

III.

As regards the third conclusion of the Application in the matter of the rural estates, it is to be noted that this is not based on the previous existence of an official dispute between the two Governments and thus does not satisfy one of the essential conditions laid down in Article 23.

As regards its subject matter, the conclusion stands strictly within the scope of Article 23, since the Polish Government expressly recognized that it desired to avail itself of the rights provided in Article 12 and 13 of the Geneva Convention and that it had proceeded to apply Articles 6 and following by notifying to the proprietors its intention of expropriating them, as required by Article 15 of the Convention.

The Court's jurisdiction being thus, as regards the subject matter of the dispute, definitely established, it is none the less clearly to be understood that the Court's enquiry and its decision can, in accordance with Article 23, only extend to differences of opinion duly found to exist in regard to the interpretation and application of Articles 6 to 22 of the Convention, without extending to the questions of fact referred to in the Application instituting proceedings (pages 6 and 8) :

whether certain estates are or are not principally intended to meet the requirements of undertakings belonging to the group of major industries ;

whether a certain company is or is not controlled by German nationals ;

whether the description of the property to be expropriated is or is not sufficiently clear ;

whether the extent of certain of the properties included in the notifications is or is not less than 100 hectares of agricultural land ;

whether any given person is or is not of a certain nationality.

These questions of fact (which clearly lie outside the jurisdiction of the Court and the solution of which alone can give the Polish Government an opportunity of expressing its opinion and arriving either at an agreement or a disagreement with the German Government) form the subject matter of the steps taken by the Polish Government in regard to the persons to whom the notification of its intention was given. Six of the nine cases are still pending before the Mixed German-Polish Arbitral Tribunal in Paris. One of the ten cases—that of Madame H. Voigt, which was decided in favour of the objector—gave the Polish Government an opportunity of showing—by the immediate withdrawal of notice—that neither after nor before the decision of the question of fact was there in the case at issue any difference of opinion between it and the German Government in regard to the interpretation and application of Articles 6 to 22 of the Convention. It is by no means impossible that a similar agreement may become manifest after the solution, in one way or the other, of other problems of fact which have arisen.

(Signed) ROSTWOROWSKI.
